

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

Index No:

Date Filed:

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DAVID R. WILLIAMS and TYSHAWN BYRD,

Plaintiffs,

Plaintiffs designate  
KINGS COUNTY

-against-

The basis of the venue is:  
Place where cause of action arose

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER  
JOSEPH LOPORTO (Shield # 9552) and POLICE  
OFFICER AAQIB BHATTI (Shield # 14985),

Each plaintiff resides at:  
Kings County, New York

Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' Attorney(s) within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York  
June 10, 2024

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

/s/ Wale Mosaku

\_\_\_\_\_  
BY: WALE MOSAKU  
Attorney for Plaintiffs  
25 Bond Street, 3<sup>rd</sup> Floor  
Brooklyn, New York 11201  
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X Index No:  
DAVID R. WILLIAMS and TYSHAWN BYRD,  
Plaintiffs,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER  
JOSEPH LOPORTO (Shield # 9552) and POLICE  
OFFICER AAQIB BHATTI (Shield # 14985),  
Defendants.

-----X

DAVID R. WILLIAMS (hereinafter "plaintiff Williams") and TYSHAWN BYRD (hereinafter "plaintiff Byrd"), by their attorney(s) THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendants THE CITY OF NEW YORK (hereinafter "City"), POLICE OFFICER JOSEPH LOPORTO (Shield # 9552) (hereinafter "Loporto") and POLICE OFFICER AAQIB BHATTI (Shield # 14985) (hereinafter "Bhatti") upon information and belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law that sounds in the intentional tort(s) of false arrest/imprisonment.
2. This is also an action at law to redress the deprivation of rights secured to each plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to each plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States; and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and statutes of the City and/or State of New York.

THE PARTIES

3. Each plaintiff is an African American male of full age, and a resident of the Borough of Kings, City and State of New York.
4. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant police officers, through its Police Department, namely the New

York City Police Department ("NYPD"), and the actions of the defendant police officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

5. At the time of the incident complained of herein, each of the above-referenced defendant police officers was in the course of his duties. As such, the City is responsible for the above-referenced defendant police officers' actions, based upon the theory of *respondeat superior*.

#### SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

6. All conditions precedent to filing of this action have been complied with; on November 15, 2023, within ninety days after the claims alleged in this complaint arose, a written notice of claim(s), sworn to by each plaintiff and/or his representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts.
7. Plaintiff David R. Williams' claim was assigned Claim No. 2023PI038192. Plaintiff Tyshawn Byrd's claim was not (and has not been) assigned a claim number by the defendant City of New York.
8. At least thirty days have elapsed since the service of the above-mentioned notice of claim(s), and adjustment or payment of the claims have been neglected or refused.
9. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

#### FACTUAL ALLEGATIONS

10. On or about November 4, 2023, at approximately 06:30 p.m., on the roadway in front of the premises described as 644 Utica Avenue, in Brooklyn, New York ("subject location"), the plaintiff Tyshawn Byrd's vehicle was unlawfully searched by the defendant police officers.
11. At the same time as the plaintiff Tyshawn Byrd's vehicle was unlawfully searched by the defendant police officers, said defendant officers also

- unlawfully searched the plaintiffs Tyshawn Byrd and David R. Williams, and thereafter subsequently unlawfully arrested the plaintiff David R. Williams.
12. Prior to the above-referenced incident(s), the plaintiff Tyshawn Byrd was driving his Infiniti G37 vehicle. At that time the plaintiff David R. Williams was a back seat passenger in the plaintiff Tyshawn Byrd's vehicle.
13. As the plaintiff Tyshawn Byrd was operating his vehicle, he was pulled over by the defendant officers, who at the time were in an unmarked NYPD vehicle.
14. After the plaintiff Tyshawn Byrd had pulled over his vehicle, the defendant officers informed the plaintiff Tyshawn Byrd that the reason they had pulled him over was because the windows of the vehicle he was operating were illegally tinted.
15. In fact that was untrue, as the windows of the plaintiff Tyshawn Byrd's vehicle were not illegally tinted, and the defendant officers made that claim as a pretext to perform an unlawful and illegal search of the persons of the plaintiffs and the plaintiff Tyshawn Byrd's vehicle.
16. Indeed, the defendant officers did not perform any sort of test to confirm their baseless allegation that the windows of the plaintiff Tyshawn Byrd's vehicle were illegally tinted.
17. After the defendant officers had pulled over the plaintiff Tyshawn Byrd as set forth above, they demanded from him his driver's license and also the registration of his vehicle, which he provided.
18. After the plaintiff Tyshawn Byrd provided the defendant officers with his driver's license and also the registration of his vehicle as requested, the defendant officers returned to their vehicle.
19. After a short period of time, the defendant officers returned to the plaintiff Tyshawn Byrd's vehicle, and returned his driver's license and vehicle registration document to him. However, the defendant officers then demanded that the plaintiffs exit the vehicle.
20. When the plaintiff Tyshawn Byrd inquired why they were being asked to exit his vehicle, one of the defendant officers then reached into the driver's side

window of the plaintiff Tyshawn Byrd's vehicle, and opened said door.

Having done that, said officer then grabbed the plaintiff Tyshawn Byrd by the arm and forcefully pulled him out of the vehicle.

21. After the plaintiffs had been compelled to exit the plaintiff Tyshawn Byrd's vehicle as set forth above, the defendant officers then conducted an illegal and unlawful search of said vehicle. Nothing illegal was recovered from said vehicle.
22. Nevertheless, the defendant officers conducted an illegal and unlawful search of the person of the plaintiff Tyshawn Byrd. Nothing illegal was recovered from the person of the plaintiff Tyshawn Byrd.
23. Said officers then conducted an illegal and unlawful search of the person of the plaintiff David R. Williams (who was a passenger in said vehicle).
24. During said search of the plaintiff David R. Williams, the defendant officers claimed that they had recovered an illegal knife from the person of the plaintiff David R. Williams, and placed him under arrest at that point.
25. However, the plaintiff David R. Williams was not in possession of an illegal knife at the time he was arrested.
26. The plaintiff Tyshawn Byrd (and another (front seat) passenger that was present in his vehicle at the time, namely Aqueteah Hammond, who was not searched by the defendant officers) were then informed that they were free to leave the scene.
27. Following the arrest of the plaintiff David R. Williams as described above, he was transported to the 71<sup>st</sup> police precinct, where he was processed, or otherwise photographed and fingerprinted.
28. Subsequently, the plaintiff David R. Williams was transported to "Central Booking", situated within the Kings County Criminal Courthouse located at 120 Schermerhorn Street, Brooklyn, New York 11201.
29. Upon arrival at "Central Booking", the plaintiff David R. Williams was processed again, and then placed in a cell to await arraignment.

30. At approximately 06:30 p.m. on November 5, 2023, the plaintiff David R. Williams was arraigned before a criminal court judge on the following charge: Criminal Possession of a Weapon in the 4<sup>th</sup> Degree [PL 265.01(1)].
31. Upon arraignment, the plaintiff David R. Williams accepted an “ACD” (Adjournment in Contemplation of Dismissal) and was released from custody. The docket number of the case that was instituted against the plaintiff David R. Williams was “CR-040652-23KN”.
32. The defendant officers were employed by The City of New York, and specifically, were in the course of their duties when they committed the above-referenced wrongful and intentional acts against each plaintiff. As such, the City of New York is responsible for said defendant officers’ actions, based upon the theory of *respondeat superior*.

CAUSE OF ACTION BY EACH PLAINTIFF AGAINST THE DEFENDANT CITY OF NEW YORK: FALSE ARREST AND FALSE IMPRISONMENT UNDER NEW YORK STATE LAW

33. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 32 of this complaint as though fully set forth herein.
34. The above-described respective arrest, detention and imprisonment of each plaintiff by the defendant officers were without just or probable cause, and without any warrant or legal process directing or authorizing each plaintiff’s arrest or subsequent detention.
35. As a result of each plaintiff’s above-described false arrest and detention by the defendant officers, each plaintiff has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
36. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for their unlawful acts towards the plaintiff as described above.

37. Consequently, each plaintiff has been damaged and hereby demands compensatory damages in an amount to be proven at trial against the defendant City of New York.

CAUSE OF ACTION BY EACH PLAINTIFF AGAINST EACH  
DEFENDANT OFFICER: UNLAWFUL SEARCH UNDER 42 U.S.C §  
1983

38. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 37 of this complaint as though fully set forth herein.
39. That the defendant officers searched, or caused each plaintiff and/or his property to be searched without any individualized reasonable suspicion that he was concealing weapons or contraband.
40. As a result of the foregoing, each plaintiff and/or his property was/were subjected to an illegal and improper search.
41. As a result of the foregoing, each plaintiff was subjected to an illegal and improper search.
42. The foregoing unlawful search violated each plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
43. Consequently, each plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each defendant officer.

CAUSE OF ACTION BY EACH PLAINTIFF AGAINST EACH DEFENDANT OFFICER:  
FALSE ARREST AND FALSE IMPRISONMENT UNDER 42 U.S.C § 1983/NEW YORK  
STATE LAW

44. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 43 of this complaint as though fully set forth herein.
45. The above-described respective arrest, detention and imprisonment of each plaintiff were without just or probable cause and without any warrant or legal

process directing or authorizing each plaintiff's arrest or subsequent detention.

46. As a result of each plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
47. Consequently, each plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendant officers.

CAUSE OF ACTION BY PLAINTIFF DAVID R. WILLIAMS AGAINST  
DEFENDANT POLICE OFFICER JOSEPH LOPORTO: DENIAL OF A  
CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO  
THE FABRICATION OF EVIDENCE

48. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 47 of this complaint as though fully set forth herein.
49. The defendant Loporto, in his capacity as an "investigating officer" fabricated evidence against the plaintiff David R. Williams.
50. The evidence that the defendant Loporto fabricated against the plaintiff David R. Williams was likely to influence a jury's decision.
51. The defendant Loporto forwarded the fabricated evidence concerning the plaintiff David R. Williams to the prosecutors in the Kings County District Attorney's office.
52. That the plaintiff David R. Williams was suffered a deprivation of his liberty as a result of the above-referenced actions of the defendant Loporto.
53. By creating fabricated evidence against the plaintiff David R. Williams; and forwarding said fabricated evidence to prosecutors which directly resulted in the plaintiff David R. Williams being deprived of his liberty, the defendant Loporto violated the plaintiff David R. Williams' constitutional right to a fair trial under the Due Process Clause of the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.



54. As a consequence of the defendant Loporto 's actions, the plaintiff David R. Williams suffered loss of liberty, humiliation, mental anguish, depression, and his constitutional rights were violated.
55. The plaintiff David R. Williams hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against the defendant Loporto.

**CAUSE OF ACTION BY EACH PLAINTIFF AGAINST EACH DEFENDANT OFFICER:  
FAILURE TO INTERVENE UNDER 42 U.S.C § 1983**

56. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 55 of this complaint as though fully set forth herein.
57. The defendant officers each had an affirmative duty to intervene on each plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
58. The defendant officers failed to intervene on each plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
59. As a consequence of each defendant officer's actions and/or omissions, each plaintiff suffered loss of liberty, humiliation, mental anguish, depression, and his constitutional rights were violated.
60. Each plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each defendant officer.

WHEREFORE, each plaintiff prays for judgment against each defendant, jointly and severally, as follows: for compensatory damages in an amount to be proven at trial; for costs and expenses of suit herein, including each plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York  
April 10, 2024

LAW OFFICES OF WALE MOSAKU, P.C.

By: /s/ Wale Mosaku

Wale Mosaku  
Attorney for the Plaintiffs  
25 Bond Street, 3<sup>rd</sup> Floor  
Brooklyn, N.Y. 11201  
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X Index #:  
DAVID R. WILLIAMS and TYSHAWN BYRD,

Plaintiffs,

-against-

ATTORNEY CERTIFICATION  
PURSUANT TO 22 NYCRR Part  
130-1.1(c)

THE CITY OF NEW YORK, POLICE OFFICER  
JOSEPH LOPORTO (Shield # 9552) and POLICE  
OFFICER AAQIB BHATTI (Shield # 14985),  
Defendants.

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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiffs and duly admitted to practice law before the Courts of the State of New York. I do hereby provide this signed certification pursuant to 22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the Court in this action are not frivolous.

Dated: Brooklyn, New York  
April 10, 2024

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

/s/ Wale Mosaku

\_\_\_\_\_  
BY: WALE MOSAKU  
Attorney for the Plaintiffs  
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(718) 243-0994

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

**Index No.**

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**DAVID R. WILLIAMS and TYSHAWN BYRD,**

**Plaintiff(s),**

**-against-**

**THE CITY OF NEW YORK, POLICE OFFICER  
JOSEPH LOPORTO (Shield # 9552) and POLICE  
OFFICER AAQIB BHATTI (Shield # 14985),**

**Defendant(s).**

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**SUMMONS AND COMPLAINT**

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**LAW OFFICES OF WALE MOSAKU, P.C.  
Attorney(s) for Plaintiff(s)  
25 Bond Street, 3<sup>rd</sup> Floor  
Brooklyn, New York 11201  
(718) 243-0994**

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**To:**

**Service of a copy of the within  
is hereby admitted.**

**Dated:..... 202\_**

**Attorney(s) for Defendant(s)**

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